1300 Pennsylvania Avenue, NW
Washington, DC 20229

U.S. Customs and
Border Protection

PUBLIC VERSION

April 6, 2026

Robert E. Defrancesco
On behalf of America Personal Transportation Vehicle Manufacturers Coalition
Wiley Rein LLP
2050 M Street NW
Washington, D.C. 20036
RDeFrancesco@wiley.law

Sarah Sprinkle
On behalf of ICON EV LLC
Sandler, Travis & Rosenberg, P.A.
1300 Pennsylvania Ave, Suite 400
Washington, D.C. 20004
ssprinkle@strtrade.com

Sarah Sprinkle
On behalf of Marxon Energy Inc.
Sandler, Travis & Rosenberg, P.A.
1300 Pennsylvania Ave, Suite 400
Washington, D.C. 20004
ssprinkle@strtrade.com

HDK Plastic Factory, Ltd. (U.S.A.) and
AERO Import LLC
4053 Grand Lakes Way
Grand Prairie, TX 75050
Nancy.Li@Evolutionelectricvehicle.Com

John M. Peterson
On behalf of Tao Motor Inc. and Denago EV Corporation
Neville Peterson LL
One Exchange Plaza
55 Broadway, Suite 2602
New York, New York 10006
jpeterson@npwny.com

Re: Notice of Initiation of Investigation and Interim Measures - EAPA Cons. Case 8247

Dear Counsel and Representatives of the Above-Referenced Entities:

This letter is to inform you that U.S. Customs and Border Protection ("CBP") has commenced a formal investigation of ICON EV LLC ("ICON"), HDK Plastic Factory, Ltd. ("HDK"), Denago EV Corporation ("Denago"), Aero Import LLC ("Aero"), Tao Motor Inc. ("Tao Motor"),[1] and Marxon Energy Inc. ("Marxon") (collectively, "the Importers") under Title IV, Section 421 of the Trade Facilitation and Trade Enforcement Act of 2015, commonly referred to as the Enforce and Protect Act ("EAPA"). CBP is investigating whether the Importers evaded antidumping

[1] As will be discussed in the analysis section, Tao Motor and seven other entities, including Denago EV Corporation, Transvolt Inc., Veloz Powersports Inc., No Speed Limit Inc., Baike Inc., Alltrack Trading Inc., and GoLabs Inc., are all subsidiaries of Zhejiang Taotao Vehicles Co., Ltd. Due to their overlapping ownership and intertwined activities, CBP will treat these entities as a single entity (Taotao's U.S. Subsidiaries).

duty ("AD") order A-570-176 and countervailing duty ("CVD") orders C-570-177 on low speed personal transportation vehicles ("LSPTV"), commonly known as golf carts, from the People's Republic of China ("China") when importing golf carts into the United States.[2] Based on a review of available information, CBP has determined that there is reasonable suspicion that the Importers have evaded AD/CVD duties; therefore, CBP has imposed the interim measures outlined below.

Period of Investigation ("POI")

Pursuant to 19 C.F.R. § 165.2, entries covered by an EAPA investigation are those "entries of allegedly covered merchandise made within one year before the receipt of an allegation...." Entry is defined as "the entry, or withdrawal from warehouse for consumption, of merchandise into the customs territory of the United States."[3] CBP acknowledged receipt of the properly filed allegations against the Importers on December 8, 2025.[4] The entries covered by this investigation are those entered for consumption, or withdrawn from warehouse for consumption, from September 7, 2024, through the pendency of this investigation.[5]

Initiation

CBP will initiate an investigation if it determines that "{t}he information provided in the allegation...reasonably suggests that the covered merchandise has been entered for consumption into the customs territory of the United States through evasion."[6] Evasion is defined as "the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the covered merchandise."[7] Thus, the allegation must reasonably suggest not only that merchandise covered by an AD and/or CVD order was entered into the customs territory of the United States by the importer alleged to be evading, but also that such entry was made with a material false statement or act, or material omission, that resulted in the reduction or avoidance of applicable AD and/or CVD cash deposits or other security.

On October 10, 2025, the American Personal Transportation Vehicle Manufacturers Coalition ("the Alleger") submitted EAPA allegations claiming that ICON, HDK, and Denago are evading

---

[2] *See Certain Low-Speed Personal Transportation Vehicles from the People's Republic of China: Amended Final Antidumping Duty Determination and Antidumping Duty Order; Amended Final Determination of Countervailing Duty Investigation and Countervailing Duty Order*, 90 Fed. Reg. 38759 (Department of Commerce, August 12, 2025) (collectively, the *Orders*).
[3] *See* 19 U.S.C. § 1517(a)(4); *see also* 19 C.F.R. § 165.1.
[4] *See* CBP's Email, "Official Receipt of EAPA 8247," dated December 8, 2025.
[5] We note that September 7, 2024, is the date that critical circumstances took effect, which is when the U.S. Department of Commerce ("Commerce") issued its preliminary determination in the CVD investigation.
[6] *See* 19 C.F.R. § 165.15(b)(2).
[7] *See* 19 C.F.R. § 165.1.

antidumping duty A-570-176 and countervailing duty orders C-570-177 (the *Orders*).[8] On November 12, 2025, the Alleger amended its Allegations against Denago to include Tao Motor, an Importer it claims is affiliated with Denago.[9] On December 3, 2025, the Alleger made a second amendment to its Allegation against HDK to include Aero, which uses the same address as HDK.[10] On December 8, 2025, the Alleger submitted a supplement to the allegation against ICON.[11] The Alleger asserted that available information reasonably suggests that the Importers evaded the *Orders* by disassembling finished Chinese-origin LSPTVs into parts for assembly into LSPTVs in the United States to avoid classification as LSPTVs/subassemblies covered by the *Orders*, misclassifying the merchandise, and transshipping Chinese-origin LSPTVs and parts through Vietnam. The details of the allegations are described below.[12]

The covered merchandise under the *Orders* includes LSPTVs from China and their subassemblies, particularly rolling chassis, whether finished or unfinished, assembled or unassembled.[13] Additionally, unassembled LSPTV components imported together with LSPTVs, or chassis, are covered by the *Orders*.[14] These components include, but are not limited to batteries, bumpers, wheel and tire assemblies, cowlings, fenders, grills, kick plates, steering column and steering wheel assemblies, dash assemblies, seat assemblies, pedal assemblies, brake assemblies, canopy or roof assemblies, temporary rain enclosures, windshields, mirrors, headlights, taillights, lighting systems, and storage.[15] Furthermore, the *Orders* cover certain individual Chinese-origin LSPTV components — seat assemblies, steering columns, suspension systems, plastic cowlings, and electric or gas powered motors — entered on separate bills of lading and imported to assemble finished vehicles, unless accompanied by the certification required by Commerce.[16]

The Alleger asserted that, based on the investigative report, bill of lading data, and other evidence, the Importers have followed a common pattern of evading the *Orders* by disassembling complete vehicles to such an extent that the resulting items are no longer considered "subassemblies," but rather individual parts or components which the Importers may

---

[8] *See* The Alleger's Letters, "Low Speed Personal Transportation Vehicles from the People's Republic of China: Request for an Investigation under the Enforce and Protect Act," dated October 10, 2025 (collectively, "the Allegations") at 4-5. The Allegations are nearly identical. The Alleger demonstrates that it qualifies as an interested party because it is a trade or business association in which a majority of the members manufacture, produce, or wholesale a domestic like product in the United States; thus, pursuant to 19 C.F.R. § 165.1(4), the Alleger meets the definition of an interested party that is permitted to submit an EAPA allegation. *See* the Allegations at Exhibit 1 at 3.
[9] *See* The Alleger's Letter, "Low Speed Personal Transportation Vehicles from the People's Republic of China: Supplement to Request for an Investigation under the Enforce and Protect Act," dated November 12, 2025 ("Denago Supplement").
[10] *See* The Alleger's Letter, "Low Speed Personal Transportation Vehicles from the People's Republic of China: Supplement to Request for an Investigation under the Enforce and Protect Act," dated December 3, 2025 ("HDK Supplement").
[11] *See* The Alleger's Letter, "Low Speed Personal Transportation Vehicles from the People's Republic of China: Supplement to Request for an Investigation under the Enforce and Protect Act," dated December 8, 2025 ("ICON Supplement").
[12] *See* the Allegations.
[13] *See* the *Orders* at 38763. The scope language is also quoted in the Allegations at 2-4.
[14] *Id.*
[15] *Id.*
[16] *Id.*

claim fall outside the scope of the *Orders*. The Alleger also asserted that some Importers have utilized transshipment routes through Vietnam to evade the *Orders*.[17] Specifically, evidence documented in the investigative report indicates that parts such as suspension components, batteries and other LSPTV components were found at the Importers' facilities.[18] Furthermore, the Alleger contends that the incentive for evasion is high.[19] Evidence that the Importers have attempted to break down the merchandise into parts and evidence that the Importers route merchandise through Vietnam indicate an effort to avoid payment of AD/CVD duties on Chinese-origin LSPTVs and parts, which, according to the Alleger can be as high as 478.09 percent for AD duties and as high as 691.58 percent for CVD duties.[20] Below is a description of the alleged evasion scheme for each of the Importers.

Importers ICON and Marxon Energy

According to the Alleger, ICON has historically imported a substantial quantity of goods classified under HTSUS subheading 8703.10, many described as "electric golf carts and spare parts," primarily sourced from several Chinese suppliers, including Guangdong Lvtong New Energy Electric Vehicle Technology Co., Ltd. ("Lvtong") and Guangdong Marshell Electric Vehicle Co., Ltd. ("Marshell").[21] However, the Alleger claimed that following the initiation of AD/CVD investigations, in the beginning of 2025, ICON has shifted its import practices.[22] Instead of importing complete vehicles classified under HTSUS 8703.10, ICON imported LSPTVs in disassembled form by breaking down LSPTVs into individual parts to avoid duties following the initiation of AD/CVD investigations.[23]

According to the investigative report contained in the Allegation, ICON operates [#] facilities that are used for assembling golf carts.[24] The report further alleges that these facilities appeared to be used for warehousing and assembly activities rather than manufacturing and that job postings at these facilities advertised positions for entry-level workers to assemble golf carts from imported components.[25] [Description of observation

].[26] The Alleger asserts that these LSPTV parts were imported with the intent of assembling them into finished LSPTVs, which are covered by the *Orders*.[27]

Specifically, the [Description of observation

[17] *See*, *generally*, the Allegations 8247-49.
[18] *See* the Allegations at Exhibit 2.
[19] *See* Allegation 8247 at 8; Allegation 8248 at 8-9; and Allegation 8249 at 7.
[20] *Id.*
[21] *See* Allegation 8247 at 16 and Exhibits 2 and 3.
[22] *Id.* at 16 and Exhibit 2.
[23] *Id.*
[24] *Id.* at 5 and Exhibit 2.
[25] *Id.* at 17 and Exhibit 2.
[26] *Id.*
[27] *Id.* at 17-20 and Exhibit 2.

]. [28] By [Description of observation], with shipments described as suspension shocks, wheel assemblies, AC motors and other suspension accessories.[29]

Allegation 8247 was further supported by a dealer's testimony in a declaration, which stated that the Importers, including ICON, frequently imported vehicles in fully assembled form or with only minimal assembly required, such as attaching a canopy to a completed vehicle.[30] The Allegation also cited the Commerce finding that golf carts can be easily disassembled into smaller parts and imported in pieces, which indicated that ICON is effectively importing complete vehicles by breaking them down into smaller parts for shipment and then reassembling them in the United States.[31] The dealer further attested that, [Description of observation], it is understood that [Description of observation].[32]

Moreover, bill of lading data shows ICON continues to import significant quantities of LSPTVs and parts from China, though it no longer appears as a consignee on public records since the beginning of this year.[33] These imports include various golf carts and electric vehicle parts supplied by Lvtong and Marshell.[34] Additionally, recent shipments reportedly indicate that ICON is breaking down LSPTVs into smaller parts, with frames and suspension components imported separately.[35]

Additionally, the Allegers asserted that ICON's lack of communication to its dealers regarding the applicability of AD/CVD duties, combined with the transshipment of its golf carts through Vietnam indicated that ICON is not paying AD/CVD duties. Furthermore there were reports of imports routed through Vietnam to avoid tariffs.[36] The Alleger argued that while ICON has addressed minor tariff impacts with its dealers, such as those [Federal statute], it has not communicated with them about the AD/CVD duties.[37] Additionally, [Description of evidence], ICON has continued to offer significantly lower prices than those of comparable products.[38] The Alleger contends that, taken together, these allegations suggest ICON is not paying the applicable AD/CVD duties.[39]

Additionally, in reviewing ICON's trade data in CBP data systems, for certain entries ICON was the consignee for importer Marxon (EAPA 8277). Both ICON and Marxon import LSPTVs

---

[28] *Id.* and Exhibit 2.
[29] *Id.*
[30] *Id.* at 10 and Exhibit 4.
[31] *Id.* at 10-11 and Exhibit 5.
[32] *Id.*
[33] *Id.* at 16-21 and Exhibits 2 and 3.
[34] *Id.*
[35] *Id.*
[36] *Id.* at 22 and Exhibits 7, 8 and 9.
[37] *Id.*
[38] *Id.* at 22 and Exhibit 10.
[39] *Id.*

from the same Vietnamese manufacturer. Pursuant to 19 C.F.R. § 101.1, an "importer" may be the consignee, the importer of record, the actual owner of the merchandise, or the transferee of the merchandise. Current CBP data shows ICON is consignee for shipments entered into the United States where Marxon is named as the importer of record ("IOR").[40] Because 19 U.S.C. § 1517(c)(1)(A) simply requires CBP to make a determination "with respect to whether such covered merchandise was entered into the customs territory of the United States through evasion", and because the Allegations, as discussed herein, reasonably suggest an evasion scheme according to 19 C.F.R. § 165.15, CBP also initiated an investigation against Marxon.

Importers HDK and Aero

According to Allegation 8248, HDK has historically imported a significant of finished golf carts classified under subheading 8703.10 (golf carts and similar vehicles), with most of these shipments reportedly supplied by the Chinese manufacturer Xiamen Dalle New Energy Automobile Co. Ltd. ("Dalle"), which is a top LSPTV supplier to HDK.[41]

Following Commerce's initiation of AD/CVD investigations, the Alleger claimed that HDK shifted to importing LSPTVs as parts and subassemblies, rather than complete vehicles, to avoid AD/CVD duties.[42] Furthermore, since January 2025, HDK is alleged to have taken steps to obscure import details by redacting importer and shipper information from public records.[43] Shipment descriptions reportedly indicate goods consisting of golf cart parts and chassis assemblies.[44]

In addition, according to public records, HDK operates three facilities for assembling LSPTVs. [Description of observation

].[45] Moreover, [Description of observation

]. Therefore, the Alleger contended that HDK is intentionally breaking down LSPTV components into smaller subassemblies, importing chassis and batteries separately, along with other parts, to avoid having its imports characterized as subject LSPTV subassemblies under the *Orders*.[46] The Alleger further asserted that HDK is importing these parts with the intent to assemble them into finished LSPTVs in the United States, thereby evading AD/CVD duties.[47]

Specifically, at the [Description evidence].[48] While [Description of observation

[40] *See* Post-Receipt Reports for Consolidated EAPA Case Number 8247.
[41] *See* the Allegation 8248 at 7, 16 and Exhibits 2 and 3.
[42] *Id.* at 7-8, 20-21 and Exhibits 2 and 3.
[43] *Id.*
[44] *Id.*
[45] *Id.* at 5 and Exhibit 2.
[46] *Id.* at 17-21 and Exhibits 2 and 3.
[47] *Id.*
[48] *Id.*

].[49] In addition, according to the open-source reporting, the facility is seeking Mandarin-speaking warehouse workers to pull and pack parts according to a dealer's work order.[50]

Subsequently, following Commerce's final determination in August 2025, Allegation 8248 indicates that [Description of evidence].[51] [evidence] reportedly suggest that HDK does not pay AD/CVD duties on its LSPTV imports.[52]

Finally, the Alleger's HDK Supplement further alleges that HDK is using Aero and other entities to enter LSPTVs.[53] Specifically, the Alleger notes that Aero was established only months after Commerce issued preliminary AD/CVD determinations.[54] Additionally, bill of lading data shows Aero utilizes the same address as HDK — "4053 Grand Lakes Way, Grand Prairie, TX 75050" and "2620 Palisades Drive, Corona, CA."[55] Taken together, the Alleger asserts that these facts suggest Aero may be used to facilitate transshipment, misclassification, or misdeclaration of country of origin, thereby enabling HDK to evade AD/CVD duties on Chinese-origin LSPTVs and parts.[56]

Importers Denago and Tao Motor

The Alleger contends that Denago has historically imported golf carts and spare parts under subheading 8703.10, with most of these shipments reportedly supplied by the Chinese manufacturer Zhejiang Taotao Vehicles Co., Ltd. ("Taotao"), which is identified as the top LSPTV supplier to Denago.[57] The Alleger states that Denago has not appeared in bill of lading data since December 2024 but asserts that Denago continues to import LSPTVs and related parts, as well as importing LSPTVs and related parts through its affiliate, Tao Motor.[58] Open-source reporting from the Allegation and Supplement show that Denago is a subsidiary of Tao Motor, which is, in turn, a subsidiary of the Chinese manufacturer Taotao.[59]

According to the investigative report, Denago is alleged to operate three facilities, including a distribution warehouse in St. Petersburg, Florida, which has advertised for entry-level workers to assemble golf carts and related components.[60] Furthermore, [Description of observation].[61] Bill of lading data further

---

49 *Id.*
50 *Id.* at 16 and Exhibit 2.
51 *Id.* at 21-22 and Exhibits 7, 11 and 12.
52 *Id.*
53 *See* HDK Supplement at 4.
54 *Id.*
55 *Id.* at 4-5.
56 *Id.* at 5.
57 *See* Allegation 8249 at 6, 14-15 and Exhibits 2 and 3. *See* also Denago Supplement at 3-4 and Exhibit 7.
58 *Id.*
59 *See* Allegation 8249 at 6, 14-15 and Exhibits 2, 3 and 4. *See* also Denago Supplement at 3-4 and Exhibit 6 and 7.
60 *See* Allegation 8249 at 5, 15-16 and Exhibits 2.
61 *Id.*

indicates Taotao continues to supply LSPTVs and parts to Denago's parent company Tao Motor.[62]

The Alleger further alleges that Denago's shipments show signs of efforts to break down LSPTV components into smaller subassemblies and parts, with the chassis and powertrain imported separately.[63] The Alleger contended that Denago is intentionally separating these parts into separate shipments to avoid having its imports characterized as subject LSPTV subassemblies under the *Orders*.[64] Previously, Denago imported fully assembled vehicles under subheading 8703.10.[65] However, recent bill of lading data indicates that Denago's shipments contained batteries, leading the Alleger to suspect that Denago and Tao Motor were separating the importation of batteries from rolling chassis in order to avoid classification as subassemblies subject to the *Orders*, thereby evading the payment of AD/CVD duties.[66]

In the Allegation, the Alleger included [Description of evidence

] .[67] Additionally, these [Description of evidence

] .[68]

Additionally, Denago dealers are alleged to advertise LSPTVs ranging from $8,450 to $11,995, which is far lower than the expected imported price when AD/CVD duties are included.[69] The Alleger calculated Denago's FOB price, applying the AD duty rate of 292% and the CVD rate of 41%, and determined that it would not be possible for Denago to sell at such low prices if these duties were being paid.[70] Thus, the Alleger contends that these patterns indicate Denago is continuing to import LSPTVs and related parts and import them through its parent company, Tao Motor.[71]

Initiation Assessment

CBP considered the evidence submitted by the Alleger to determine whether it should initiate investigations of the Importers. In assessing the facts provided in the Allegation, CBP found the information submitted by the Alleger reasonably suggests that the Importers entered merchandise covered by the *Orders* into the customs territory of the United States through evasion.[72] The Alleger relied on evidence in the investigative report, bill of lading data, dealer declarations, email communications from the Importers to dealers, and open-source reporting, which taken

[62] *Id.* at 15-16 and Exhibits 2 and 3.
[63] *Id.* at 16-17 and Exhibit 3.
[64] *Id.*
[65] *Id.* at 14 and Exhibits 2 and 3.
[66] *Id.* at 14-15 and Exhibits 2 and 3.
[67] *Id.* at 17 and Exhibit 7.
[68] *Id.* at 17 and Exhibit 8.
[69] *Id.* at 17-18 and Exhibit 9.
[70] *Id.* at 18 and Exhibit 9.
[71] *Id.* at 16-17 and Exhibit 3. *See* also Denago Supplement at 5 and Exhibit 7.
[72] *See* the Allegations.

together reasonably suggests LSPTVs were broken down in China into parts and components, and shipped to the United States with the intent to assemble them into finished LSPTVs.[73] Additionally, information in the Allegations indicated that the Importers also likely mis-declared Vietnam as the country of origin for some entries of LSPTVs.[74]

Specifically, the investigative report contained in the allegation reasonably suggests that the Importers attempted to enter golf cart parts and parts on separate bills of lading in order to avoid classification of the merchandise as subassemblies covered by the *Orders*.[75] The investigative report [Description of observation].[76] Furthermore, job postings found through open-source reporting at all the Importers' facilities indicated that the Importers were seeking workers for assembly roles rather than manufacturing positions.[77] This supports the Alleger's claim that the Importers were not manufacturing golf carts domestically, but instead importing parts and subassemblies for assembly into complete vehicles in the United States.

The investigative report also included [Description of evidence].[78] This evidence is consistent with the Alleger's assertion that the Importers have attempted to import individual golf cart components and parts from China for assembly into finished golf carts in the United States.

Moreover, the bill of lading data reasonably available to the Alleger showed that LSPTVs and other LSPTV components from China covered by the *Orders* are being exported in substantial volumes to the United States.[79] Additionally, recent shipments reportedly showed efforts to break down LSPTVs into smaller subassemblies, with chassis and LSPTV components imported separately.

Lastly, the Alleger has shown that the Importers continued to offer golf carts at prices well below what would be expected if AD/CVD duties were imposed.[80] The forgoing evidence submitted by the Alleger reasonably suggests that the Importers entered Chinese-origin LSPTVs parts and components covered by the *Orders* into the United States by evasion.

For the reasons set forth herein, CBP initiated an investigation on December 30, 2025,[81] under the authority of 19 U.S.C. § 1517(b)(1) on the Importers' entries of covered merchandise that are

---

[73] *Id.*
[74] *Id.*
[75] *See* the Allegations at Exhibit 2.
[76] *Id.*
[77] *Id.*
[78] *Id.*
[79] *See* the Allegations at Exhibit 3. *See* also Denago Supplement at Exhibit 7.
[80] *See* Allegations 8247 and 8248 at Exhibit 12. *See* also Exhibit 9 in the Allegation 8249.
[81] *See* CBP's Memorandum, "Initiation of Investigation for EAPA Cons. Case 8247," dated December 30, 2025 ("Initiation Memo").

alleged to have been entered for consumption into the customs territory of the United States through evasion during the POI.[82]

Interim Measures

Not later than 90 calendar days after initiating an investigation under EAPA, CBP will decide, based on the record of the investigation, if there is reasonable suspicion that merchandise covered by an AD or CVD order was entered into the United States through evasion.[83] CBP need only have sufficient evidence to support a reasonable suspicion that the Importers alleged to be evading entered merchandise covered by an AD or CVD order into the United States by a material false statement or act, or material omission, that resulted in the reduction or avoidance of applicable AD or CVD cash deposits or other security.[84] If reasonable suspicion exists, CBP will impose interim measures pursuant to 19 U.S.C. § 1517(e) and 19 C.F.R. § 165.24. As explained below, CBP is imposing interim measures on covered merchandise imported by the Importers because there is reasonable suspicion that the Importers entered Chinese-origin covered merchandise into the United States through evasion.

CF-28s, Cargo Exams, and Other Research Conducted by CBP

CBP issued CBP Form 28 ("CF-28") requests for information to ICON, Tao Motor, and Marxon.[85] The Importers' CF-28 Requests requested information pertaining to the Importers' POI entries, including bills of lading, commercial invoices, purchase orders, manufacturer details, production records, raw material documentation, and proofs of payment.[86] The Importers submitted timely CF-28 responses.[87] Additionally, CBP conducted cargo exams on two of Aero's entries, both of which were [action].[88] All CF-28 requests, cargo exams, and [action] occurred within the EAPA POI. Additionally, CBP conducted open-source research to analyze import patterns of the Importers' suppliers from their upstream suppliers and to examine relationships among the Importers, manufacturers, and the manufacturer's suppliers.[89] The following sections summarize the CF-28 responses, cargo examination results and open-source findings.

Analysis

---

[82] *See also* 19 C.F.R. § 165.15.
[83] *See* 19 C.F.R. § 165.24(a).
[84] *See* 19 U.S.C. § 1517(e); *see also* 19 C.F.R. § 165.1 and § 165.24.
[85] *See* CF-28 requests for ICON (entry numbers [#]3011("Entry 3011") and [#]2500 ("Entry 2500"), dated June 17, 2025, entry number [#]3185 ("Entry 3185"), dated July 24, 2025, and for Marxon (entry [#]6855 ("Entry 6855"), dated November 6, 2025 (collectively, the Importers' CF-28 Requests).
[86] *See* CBP-28s for ICON Entry 3011 and Entry 2500, and Entry 3185, Marxon Entry 6855, HDK Entry 8164.
[87] *See* Icon's CF-28 Responses for Entries 3011, 2500, and 3185 , dated July 23, 2025, and October 31, 2025 ("Icon's CF-28 Responses").
[88] *See* Memorandum to the File, "Aero Cargo Exam," dated August 21, 2025 ("Aero Cargo Exam").
[89] *See* Memorandum to the File, "CBP Trade Data," dated February 1, 2026 ("CBP Trade Data").

ICON and Marxon

Record evidence gives rise to reasonable suspicion that ICON and Marxon have engaged in transshipment of LSPTVs through Vietnam. As noted in the Initiation Memo, ICON initially imported golf carts from two Chinese manufacturers, Lvtong and Marshell, before subsequently shifting its sourcing of golf carts to [entity], an electric vehicle producer based in Vietnam.[90] Notably, ICON shifted its golf carts sourcing to Vietnam after Commerce issued its preliminary determination.[91]

When importing [merchandise] for Entries 3011 and 2500, ICON reported Lvtong, a Chinese company, and [entity] as manufacturers for Entry 3011 and Entry 2500, respectively.[92] Notably, for Entry 2500, China was listed as the country of origin for certain components imported from Vietnam.[93] For Entry 2500, ICON stated that the [product] were assembled in Vietnam using [level] Chinese components and reported that future shipments would include more Vietnamese components.[94] ICON's CF-28 responses indicated that the imported merchandise for Entries 3011 and 2500 — [Description of merchandise] — were made in China or assembled in Vietnam using Chinese-origin components.[95] Specifically, ICON stated that its [product] did not include [Description of merchandise].[96] In its CF-28 responses, ICON stated that its [product] lacked [Description of merchandise], and argued that the entry should fall outside the scope of the *Orders*.[97] Despite these assertions, CBP's review of ICON's bill of materials ("BOM") revealed that ICON failed to provide sufficient explanation for the materials used to produce LSPTVs or in the assembly of golf carts.[98] Specifically, ICON did not provide records specifying which materials were actually used or the country of origin of those materials, particularly regarding the claimed absence of [Description of merchandise].[99] The BOM provided to CBP included items such as [Description of merchandise] all of which appear to be [merchandise].[100]

Because ICON provided no further clarification on how these materials are used in the assembly of LSPTVs, it is difficult for CBP to assess the veracity ICON's claim regarding the absence of

---

[90] *See* Initiation Memo at 3. *See also* Post-Receipt Reports for Consolidated EAPA Case Number 8247.
[91] *See* Post-Receipt Reports for Consolidated EAPA Case Number 8247. *See also Certain Low Speed Personal Transportation Vehicles from the People's Republic of China: Preliminary Affirmative Determination of Sale at Less-Than-Fair-Value Investigation, Preliminary Affirmative Determination of Critical Circumstances*, Postponement of Final Determination and Extension of Provisional Measures, 90 Fed. Reg. 8,517 (Dep't of Commerce, January 30, 2025).
[92] *See* ICON's CF-28 Responses.
[93] *Id.*
[94] *See* ICON's CF-28 Responses, dated July 23, 2025.
[95] *Id.*
[96] *Id.*
[97] *Id.*
[98] *See* ICON's CF-28 Responses at Exhibit C.
[99] *Id.*
[100] *Id.*

[merchandise]. Additionally, the BOM was written in Mandarin with English translation, further suggesting that these materials are of Chinese origin, even though the document itself does not specify the supplier or country of origin.[101] The listing of these items raises questions about the accuracy of ICON's narrative and warrants further scrutiny. Therefore, merely stating that the absence of [merchandise] is insufficient to establish that the merchandise is not covered by the *Orders*.

In its CF-28 response for Entry 3185, ICON claimed that the golf carts were fully assembled in Vietnam, with a [quantity] of parts sourced from Vietnamese suppliers, compared to its CF-28 responses for Entry 3011 and Entry 2500, which [level] used Chinese content.[102] ICON's purchase documents showed that Marshell, the Chinese manufacturer, accepted the order and subcontracted part of the production to [entity] in Vietnam.[103] ICON submitted a BOM showing that [#] percent of the raw material content was sourced from Vietnam and provided a production flow chart describing an assembly process at [entity].[104] However, the flow chart and supporting documentation revealed that key components, including the [Description of merchandise], were [level] sourced from China, and it remains unclear whether certain other materials, including those for [merchandise], were actually manufactured in Vietnam.[105] The flow chart did not clarify whether [Description of production process], only that [Description of production process].[106]

ICON also provided a list of its top [#] Vietnamese suppliers, who supplied components such as [Description of merchandise].[107] However, none of these suppliers appeared to provide components necessary for golf cart assembly, such as chassis assembly. Although ICON's supplier list included only Vietnamese companies, its production flow chart indicated ongoing sourcing from China.[108] Additionally, production records are inadequate, consisting mainly of general log entries [(Description of production process] without specifying methods or procedures that could substantiate that capability to engage in these types of assembly.[109]

While ICON mentioned a [level] proportion of parts sourced from Vietnam in Entry 3185, compared to its CF-28 responses for Entry 3011 and Entry 2500, which [level] used Chinese content, its documentation remained vague and incomplete, with insufficient detail on material usage, production steps, and raw material sourcing.[110] Although ICON referenced a [Description of sourcing] in its production flow chart, it is unclear whether this was implemented, and supply chain mapping was inadequate, particularly with respect to critical golf cart components such as [Description of merchandise

---

[101] *Id.*
[102] *See* ICON's CF-28 Responses, dated October 31. 2025. *See also* ICON's CF-28 Responses, dated July 23, 2025.
[103] *See* ICON's CF-28 Responses at Exhibit B.
[104] *Id.* at Exhibit E.
[105] *Id.* at Exhibit D.
[106] *Id.*
[107] *Id.* at Exhibit E.
[108] *Id.* at Exhibit D and E.
[109] *Id.* at Exhibit D.
[110] *See* ICON's CF-28 Responses at Exhibit D and E. *See also* ICON's CF-28 Responses, dated July 23, 2025.

]. [111] The BOM omitted Chinese suppliers responsible for critical components, and the Vietnamese suppliers identified did not seem to provide essential parts.[112]

Furthermore, the import activity shifted from ICON to Marxon, with Marxon listed as the IOR and ICON as consignee, both sourcing from [entity], which indicates a high degree of coordination between ICON and Marxon.[113] Notably, CBP records show ICON ceased making entries after [month and year] while Marxon began making entries in [month and year].[114] The submission of Marxon's CF-28 response by ICON further suggests a close relationship between the two entities.[115] As noted in the Initiation Memo, ICON was the consignee for certain entries imported by Marxon.[116]

In its CF-28 response for Entry 6855, ICON did not provide any explanation regarding its decision to switch to Marxon.[117] Additionally, for Entry 6855, Marxon claimed that the golf carts were fully assembled in Vietnam, with Vietnamese content up to [#] percent.[118] However, as with ICON's previous response for Entry 3185, Marxon failed to provide the supporting documentation to substantiate chassis assembly occurred in Vietnam.[119] Marxon provided a production flow chart for [entity's] production process; this flow chart provided more detail on [description of product] but did not specify how and from where the [product] was sourced.[120] The BOM simply stated the [product] was sourced from Vietnam, without naming suppliers or providing purchase records, despite CBP requesting this information in the Importers' CF-28 request.[121] Assembly reports consisted primarily of log entries, such as [Description of production process], without specifying methods or procedures that could substantiate the capability in these types of assembly.[122] The [production] report also lacked detail on [production].[123] The production flow chart explained assembly steps but did not detail where components were manufactured or how they were sourced.[124]

Taken together, the lack of clarity and supporting documentation regarding material sourcing, production processes, and supplier relationships prevents CBP from verifying ICON's and Marxon's claims. These deficiencies, combined with admissions of continued Chinese sourcing and incomplete supply chain records, establish reasonable suspicion that ICON is engaging in transshipment of golf carts through Vietnam to evade the *Orders*. The use of Marxon as an IOR,

---

[111] *See* ICON's CF-28 Responses at Exhibit D.
[112] *Id.*
[113] *See* Post-Receipt Reports for Consolidated EAPA Case Number 8247.
[114] *Id.*
[115] *See* Marxon's CF-28 Response dated March 10, 2026.
[116] *See* Initiation Memo.
[117] *See* ICON's CF-28 Responses. The change from ICON as the IOR to Marxon as the IOR was due to CBP rate advancing most of ICON's entries and ICON's inability to secure a bond.
[118] CBP notes that the narrative response indicated that the Vietnamese content was 52 percent of the value of the LSPTV; however, the exhibits submitted to substantiate that claim indicated that the Vietnamese content added to 48 percent of the value. *Id.*
[119] *See* ICON's CF-28 Responses at Exhibit D. *See also* Marxon's CF-28 Responses at Exhibit D-2, 4, 5, 9 and 10.
[120] *See* Marxon's CF-28 Response at Exhibit D-9 and 10.
[121] *Id.* at Exhibit E-1.
[122] *Id.* at Exhibit D-2.
[123] *Id.* at Exhibit D-4.
[124] *Id.* at Exhibit D-9 and 10.

while ICON remains the consignee which both source from the same Vietnamese supplier, further creates reasonable suspicion that ICON is attempting to evade the *Orders* by channeling shipments through Marxon. Based on the totality of circumstances and available records, CBP has sufficient grounds to suspect that ICON is seeking to evade the *Orders* through Marxon by transshipment through Vietnam.

As discussed in the Initiation Memo, ICON has also attempted to disassemble golf carts into parts and components to evade the *Orders*.[125] Record evidence provides reasonable suspicion that ICON is evading the *Orders* by shipping separate chassis and other golf cart components to avoid classification under HTSUS 8703.10. According to CBP data systems and ICON's CF-28 responses, ICON claimed its [product] did not include [Description of merchandise].[126] However, CBP's review of ICON's import history revealed multiple separate shipments described as containing [Description of merchandise], without certifications stating that they will not be assembled as golf carts. Notably, these shipments were classified under tariff code 8708.80.1600, which is not referenced in the scope of the *Orders*.[127]

ICON's practice of importing [merchandise] and [merchandise] in separate shipments and assembling them at its facilities, as mentioned in the Allegation,[128] raises reasonable suspicion that it may be breaking golf carts into smaller parts, enabling the use of different HTSUS codes not covered by the *Orders*. ICON's advertisement of assembly jobs further supports this suspicion, as it suggests the company is importing easy-to-assemble components, hiring staff to put these parts together, and then selling the completed vehicles in the United States.[129] By separating these components from [product] and assigning them HTSUS codes outside the scope of the *Orders*, there is reasonable suspicion that ICON appears to be intentionally misclassifying merchandise to evade the *Orders*, and intended to assemble the components into golf carts in the United States, which are covered by the *Orders*.

HDK and Aero Import

Record evidence provides reasonable suspicion that HDK has engaged in the transshipment of LSPTVs through Vietnam by employing multiple entities as intermediaries, including Aero, indicating efforts to evade the *Orders*.

CBP data and other open source research indicate that HDK imported fully assembled golf carts from Vietnam *via* [entity], a Vietnamese golf cart manufacturer, between March and September 2025.[130] Although the original allegation did not reference Vietnam, CBP entry data confirm that HDK's imports were routed through Vietnam.[131]

---

[125] *See* Initiation Memo.
[126] *See* ICON's CF-28 Responses.
[127] CBP identified multiple ICON entries showing suspension, shocks, and wheel assemblies through queries of CBP data systems.
[128] *See* Initiation Memo.
[129] *Id*.
[130] *See* Post-Receipt Reports for Consolidated EAPA Case Number 8247.
[131] *See* the Allegation 8248; *see also* Post-Receipt Reports for Consolidated EAPA Case Number 8247.

Additionally, shipment records from CBP systems show that [entity] imported substantial quantities of golf cart components — including [merchandise] — from Dalle in [country] between [month] and [month, year].[132] Notably, HDK had previously imported fully assembled golf carts directly from Dalle,[133] further suggesting a shift in routing through Vietnam and that [entity] was utilized as a transit point for Chinese-origin components.

Furthermore, cargo examinations and entry documentation consistently indicated Chinese origin for key components, despite the entries listing Vietnam as the country of origin.[134] On June 23, 2025, CBP selected Entries 2962 and 3010, imported by Aero, for a cargo exam.[135] CBP's examination of two containers revealed [Description of imported merchandise] labeled "[country]" and bearing [country] inscriptions.[136] The only [country] labeling observed by CBP was a typed sheet and a hang tag stating "[description]."[137] Moreover, entry documentation included descriptions such as golf cart quantity written in [language], further indicating a connection to China as the true country of origin.[138] Additionally, though photos from the examination showed a label in the packaging on the side of the cart stating "[description];" the exterior packaging also featured a sticker with the golf cart type written in [language].[139] This inconsistency in country-of-origin labeling, combined with the presence of [country] markings on certain components and the use of [language] language on the packaging to describe the type of golf cart, provides reasonable suspicion that HDK concealed the true country of origin in order to evade the *Orders*.

Moreover, CBP identified a connection between HDK and Aero, suggesting HDK is using Aero to import golf carts in an effort to evade the *Orders*. Although the shipment listed Aero as the IOR, several components in the photos — specifically the [merchandise] — displayed references to "Evolution" or "Evolution Electric Vehicles," a trademark owned by HDK.[140] Open source research confirms that HDK's trade name is "Evolution Electric Vehicle," and its vehicle model is described as "Evolution."[141] Aero's entry documents listed the IOR address as 4053 Grand Lakes Way, Grand Prairie, TX 75050, which is associated with HDK.[142] Commerce's AD/CVD investigation confirmed HDK as the IOR, with Evolution Electric Vehicles acting as the sales agent.[143] Additionally, CBP data systems show that HDK has utilized multiple entities to import golf carts from [entity], all sharing the same address as HDK.[144] This pattern of using various entities with a common address provides reasonable suspicion of an effort to obscure the true importer and country of origin of the goods.

---

[132] *See* CBP Trade Data at Attachment 1.
[133] *See* Post-Receipt Reports for Consolidated EAPA Case Number 8247.
[134] *See* Aero Cargo Exam.
[135] *Id*.
[136] *Id*.
[137] *Id*.
[138] *Id*.
[139] *Id*.
[140] *Id*.
[141] *See* Memorandum to the File, "HDK's Business Registration Information," dated February 1, 2026.
[142] *See* Aero Cargo Exam. *See also* HDK Supplement at 4.
[143] *See* the Allegation 8248 at Exhibit 10.
[144] CBP identified multiple entities sharing the same address as HDK through queries of CBP data systems.

Taken together, the evidence of [language] labeling and inscriptions, HDK-associated markings, overlapping addresses, use of multiple entities, shipments routed through Vietnam, and [entity] ongoing imports from China, establish reasonable suspicion that HDK has facilitated the transshipment of golf carts and components through Vietnam to conceal their Chinese origin and evade applicable duties or restrictions.

Taotao's U.S. Subsidiaries

There is reasonable suspicion that Chinese manufacturer Taotao's U.S. subsidiaries have engaged in evasion through transshipment of LSPTVs *via* Vietnam and misclassification of merchandise.

Based on CBP's review of publicly available information and Taotao's financial statements, Denago and Tao Motors are operating multiple entities to evade the *Orders*.[145] According to Taotao's financial statements, Taotao wholly owns the following subsidiaries: Denago, Tao Motor, Baike Inc. ("Baike US"), Transvolt Inc. ("Transvolt"), No Speed Limit Inc. ("No Speed Limit"), Alltrack Trading Inc. ("Alltrack"), GoLabs Inc. ("GoLabs"), and Veloz Powersports Incorporated ("Veloz Powersports").[146] Additionally, open-source research and CBP systems indicate that Denago, Tao Motor, Baike US, and Transvolt are conducting business operations at the same addresses.[147] Tao Motor's business registration lists one of Tao Motor's addresses as 3900 W Plano Pkwy, Plano, Texas,[148] an address also listed on Denago's company website.[149] Tao Motor and Denago also share trademarks; during the POI, the "Taotao" trademark was held by both Tao Motor and Denago.[150] Tao Motor's business registration also lists Denago as an alternative trade name.[151] Tao Motor's website lists its company headquarters as 2201 Luna Rd., Ste B, Carrollton, Texas, on its company website and for trademarks; Veloz Powersports, also listed 2201 Luna Rd., Ste B, Carrollton, Texas in its' business registration and trademark registration.[152] Tao Motor and Veloz Powersports also share the same business agent and the same representative for their trademarks.[153]

---

[145] *See* Memorandum to the File, "Taotao Financial Statements," dated concurrently with this memorandum ("Taotao Financial Statements") and "Taotao U.S. Subsidiaries," dated February1, 2026 ("Taotao U.S. Subsidiaries").

[146] *See* Taotao Financial Statements.

[147] *See* Taotao U.S. Subsidiaries at Attachment 1 and 3. CBP notes that Denago , Tao Motor, Transvolt, Veloz Powersports, GoLabs list [address] as their address in CBP data systems.

[148] *See* Taotao U.S. Subsidiaries at Attachment 1, Section A.

[149] Denago EV is listed as a brand portfolio for Denago Powersports on Denago Powersports' website. *See* Taotao U.S. Subsidiaries at Attachment 2, Section B.

[150] *See* Taotao U.S. Subsidiaries at Attachment 1, Section C, citing an update of assignment of ownership to the "Taotao" trademark. Both Tao Motor and Bike Corporation are listed as owners during the POI. CBP notes that Bike Corporation operates out of the same address as Denago's registered business address. *See also* Attachment 2, Sections B and C.

[151] *See* Taotao U.S. Subsidiaries at Attachment 1, Section A.

[152] *See* Taotao U.S. Subsidiaries at Attachment 1, Sections B and C and Attachment 3, Sections A and B.

[153] *See* Taotao U.S. Subsidiaries at Attachment 1, Section and Attachment 3, Section A.

Additionally, Veloz Powersports' Better Business Bureau and affiliated company website list an additional company address as 2533 Royal Ln, #505B, Dallas, Texas,[154] which is also Baike's U.S. registered business address.[155] Transvolt also shares a Delaware business address with Denago's corporate address.[156] Due to the shared company ownership, addresses, and trademarks, CBP will treat Tao Motor, Denago, Veloz Powersports, Baike US, Alltrack, GoLabs, and Transvolt Inc. as a single entity (hereinafter, collectively referred to as "Taotao's U.S. Subsidiaries").

Record evidence provides reasonable suspicion that Taotao's U.S. Subsidiaries are evading the *Orders via* misclassification. Specifically, CBP is relying on CBP data systems, U.S. trade trends, and CF-28 responses to make this determination.

CBP data confirms that Denago had [description of import history].[157] Between [month] and [month, year], Denago imported [product] and [product] exclusively from [entity] in [country].[158] These shipments consisted of [Description of merchandise], all of which would be covered by the *Orders*.[159] Denago's final entry occurred on [month, date, year], shortly after the Commerce preliminary CVD determination on December 6, 2024, a timing that suggests an effort to avoid the imposition of duties.[160] Entry documentation confirms that Denago imported [merchandise] directly from [entity].[161] Although Denago ceased importing after [month, year], Tao Motor continued to import [product] from [entity, country],[162] frequently described as [name] or [name], which are outside the scope of the *Orders*.[163] However, CBP's review of entry data revealed inconsistencies in [decription], including several entries labeled as "[name]", or "[name]."[164] This pattern of inconsistent descriptions provides reasonable suspicion for misclassification of imports to evade the *Orders*. Additionally, on July 21, 2023, CBP issued a CF-28 to Tao Motor for entry [#]6404.[165] In its response, Tao Motor admitted its [Description of merchandise].[166] Tao Motor further admitted its [Description of merchandise].[167]

During the course of the investigation, CBP also uncovered that Taotao U.S. Subsidiaries are transshipping golf carts through Vietnam and misclassifying the goods to avoid the *Orders*. Specifically, CBP data shows that between [month, year] to [month, year], Taotao U.S.

---

154 Veloz Powersports Incorporated's business registration lists Bike.CC as an alternative tradename. Bike.CC's company website lists 2533 Royal Ln #505B, Dallas, Texas as their company address. *See* Taotao U.S. Subsidiaries at Attachment 3, Sections A, B, and C.
155 *See* Taotao U.S. Subsidiaries at Attachment 4.
156 *See* Taotao U.S. Subsidiaries at Attachment 2, Section A and Attachment 4.
157 *See* Post-Receipt Reports for Consolidated EAPA Case Number 8247.
158 *Id*.
159 *Id*.
160 *Id*. *See also* Allegation 8249 at 14-15.
161 *See* Post-Receipt Reports for Consolidated EAPA Case Number 8247.
162 *Id*.
163 *Id*.
164 *See* Trade cargo descriptions memo to the file.
165 *See* CF-28 for Tao Motor (entry [#]6404 ("Entry 6404"), dated July 21, 2023.
166 *See* Tao Motor's CF-28 Responses for Entries 6404, dated August 18, 2023.
167 *Id*.

Subsidiaries imported [product] from Baike Vehicle Vietnam Co., Ltd. ("Baike Vietnam").[168] These shipments were classified under HTSUS code [#], which is not listed in the scope of the *Orders*, with [shipment detail] frequently identifying the merchandise as [name], which are outside the scope of the *Orders*.[169] While many described the merchandise as [name], CBP also observed several with descriptions such as "[Description of merchandise]" or "[Description of product]."[170] This continued inconsistency in merchandise descriptions creates confusion regarding whether the entries actually contain golf carts.

Moreover, CBP collected trade data from its systems, which revealed that Baike US imported substantial quantities of [merchandise] from [entity], including [Description of merchandise], between [month, year] and [month, year].[171] CBP data also indicates that between [month, year] and [month, year], Tao Motor imported [product] from Vietnam through Baike Vietnam.[172] The alignment of these timelines, combined with evidence that both Tao Motor and Baike US sourced components from Taotao in China, gives rise to reasonable suspicion that golf cart components originating from Taotao were shipped to Baike in Vietnam, assembled into finished vehicles, and subsequently exported to the United States by Tao Motor. Trade data reinforces the reasonable suspicion that Tao Motor is utilizing Baike to facilitate the transshipment of Chinese-origin components and vehicles through Vietnam to evade the *Orders*.

In summary, the common ownership among importers and manufacturers, import patterns, classification discrepancies, and trade data collectively establish reasonable suspicion that the Taotao U.S. Subsidiaries have engaged in evasion by transshipping LSPTVs through Vietnam and misclassifying merchandise to evade the *Orders*.

Enactment of Interim Measures

Based on the record evidence described above, CBP determines that reasonable suspicion exists that the Importers misclassified and engaged in transshipment through Vietnam of LSPTVs that entered into the United States, thereby resulting in the reduction of applicable AD/CVD cash deposits. Therefore, CBP is imposing interim measures on the Importers' entries of LSPTVs from China pursuant to this investigation.[173] Specifically, in accordance with 19 U.S.C. § 1517(e), CBP shall:

> (1) suspend the liquidation of each unliquidated entry of such covered merchandise that entered on or after December 30, 2025, the date of the initiation of the investigations;
> (2) pursuant to the Commissioner's authority under 19 U.S.C. § 1504(b), extend the period for liquidating each unliquidated entry of such covered merchandise that entered before December 30, 2025, the date of the initiation of the investigations; and

[168] *See* Post-Receipt Reports for Consolidated EAPA Case Number 8247.
[169] *Id.*; *see also* the *Orders.*
[170] *See* Post-Receipt Reports for Consolidated EAPA Case Number 8247.
[171] *See* CBP Trade Data at Attachment 2.
[172] *See* Post-Receipt Reports for Consolidated EAPA Case Number 8247.
[173] *See* 19 U.S.C. § 1517(e); *see also* 19 C.F.R. § 165.24.

(3) pursuant to the Commissioner's authority under 19 U.S.C. § 1623, take such additional measures as the Commissioner determines necessary to protect the revenue of the United States, including requiring a single transaction bond or additional security or the posting of a cash deposit with respect to an entry of such covered merchandise.[174]

In addition, CBP will require live entry of merchandise, reject any entry summaries that do not comply with live entry requirements, and require refiling of entries that are within the entry summary rejection period.[175] CBP may also evaluate the Importers' continuous bonds to determine their sufficiency.[176] Finally, CBP may pursue additional enforcement actions, as provided by law, consistent with 19 U.S.C. § 1517(h).

Continuation of Investigation

According to 19 C.F.R. § 165.15(d)(1), CBP will issue notification of its decision to initiate an investigation to all parties to the investigation no later than five business days after day 90 of the investigation, and the actual date of initiation will be specified therein. Based on the information described herein, CBP has initiated investigations concerning the evasion of the *Order*. The information in the Allegations reasonably suggests that the Importers evaded AD/CVD duties through misclassification and transshipment through Vietnam of imported merchandise. If, at the end of the investigation, CBP determines that substantial evidence of evasion exists, CBP will take appropriate measures to protect the revenue under 19 U.S.C. § 1517(d).

For future submissions or factual information that you submit to CBP pursuant to this EAPA investigation, please provide both a business confidential version and public version, with public summaries, to CBP *via* the EAPA Portal (a.k.a. the EAPA case management system, or CMS): https:\\eapallegations.cbp.gov. Documents uploaded to the CMS will constitute service on the parties to this investigation[177] and all administrative record documents will be available *via* the CMS. Please note that CBP requires that all documents submitted *via* the CMS are made text searchable, especially if those documents are submitted as PDFs.

Should you have any questions regarding this investigation, you may contact us at eapallegations@cbp.dhs.gov with "EAPA Cons. Case 8247" in the subject line of your email. Additional information on this investigation, including the applicable statute and regulations, may be found on CBP's website at: https://www.cbp.gov/trade/eapa.

Sincerely,

for Victoria Cho
Acting Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
CBP Office of Trade

---

[174] *See also* 19 C.F.R. § 165.24(b)(1)(i)-(iii).
[175] *See* 19 C.F.R. § 165.24(b)(1)(iii).
[176] *Id.*
[177] *See* 19 C.F.R. § 165.23(c); *see also* 19 C.F.R. § 165.4 and 19 C.F.R. § 165.26.